

PERFORMANCE WORK STATEMENT

Intoxilyzer Maintenance, Inspection and Training Services

PART 1

GENERAL INFORMATION

1 General: This is a non-personal services contract under which personnel performing the services are not subject to the supervision or control of the U.S. Government, either by contract terms or by the manner of contract administration. The Government shall not exercise day-to-day supervision or control over the Contractor's employees performing the required tasks. Contractor personnel shall remain under the sole supervision and control of the Contractor, who is responsible for managing their performance and conduct. The Contractor is solely accountable to the U.S. Government for the satisfactory performance of all contract requirements.

1.1 Description of Services/Introduction. This is a non-personal services contract to provide Intoxilyzer maintenance services. The Contractor shall furnish all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform Intoxilyzer maintenance, inspection, court testimony, and training services at the Directorate of Emergency Services, Fort Bliss, TX, as specified in this Performance Work Statement (PWS), except for those items identified as Government-Furnished Property (GFP) or Government-Furnished Services (GFS). The Contractor shall perform all services in accordance with the standards, terms, and conditions outlined in this contract.

1.2 Background. Fort Bliss law enforcement officers conduct thousands of traffic stops annually on Federal properties and encounter impaired drivers throughout every 24 hours. Over the past several years, Fort Bliss has processed more than 100 drivers who tested above the Texas State legal blood alcohol limit; this figure does not include suspected impaired drivers who were identified but not confirmed through testing. The Intoxilyzer device is critical to the prosecution and conviction of impaired drivers on Fort Bliss. Due to stringent legal and certification requirements, the Fort Bliss Provost Marshal's Office is unable to maintain an in-house certified maintenance and inspection program for the Intoxilyzer. Therefore, contracting for specialized Intoxilyzer maintenance and inspection services is essential to ensure compliance with all legal standards and to support law enforcement operations.

1.3 Scope. This contract includes all functions, tasks, and responsibilities normally performed by a Certified Intoxilyzer 9000 Maintenance and Inspector in the State of Texas. The Contractor shall be responsible for calibrating, maintaining, servicing, and inspecting three (3) Intoxilyzer 9000 machines to ensure compliance with State certification requirements. This includes conducting monthly on-site inspections of the Intoxilyzer instruments, checking the reference solutions, verifying instrument calibration, and performing new calibrations as required. The Contractor shall maintain current inspection and maintenance records and shall provide such records to prosecuting authorities upon request.

Additionally, the Contractor shall be available to provide courtroom testimony and

conduct training for military and civilian police personnel assigned or attached to the Fort Bliss Provost Marshal's Office. The Contractor shall comply with all applicable laws and regulations, including but not limited to Federal laws, Texas State laws, Occupational Safety and Health Administration (OSHA) regulations, and applicable Army and installation regulations.

1.4 Objectives. The objective of this contract is to provide a certified individual to perform maintenance, inspections, expert witness testimony, and operator training and certification for three (3) Intoxilyzer 9000 machines.

1.4 General Information:

1.4.1 Period of Performance: The period of performance shall be for one (1) Base year of 12 months and four (4) 12-month option years. The period of performance reads as follows:

Base Year	29 April 2026- 28 April 2027
Option Year 1	29 April 2027- 28 April 2028
Option Year 2	29 April 2028- 28 April 2029
Option Year 3	29 April 2029- 28 April 2030
-8	29 April 2030- 28 Oct 2030

1.5 Quality Control Plan (QCP): The Contractor shall develop and maintain a Quality Control Plan (QCP) to ensure all services are performed in accordance with the requirements of this Performance Work Statement (PWS). The QCP shall include procedures to identify, prevent, and correct defective services and to prevent their recurrence. The Contractor's QCP shall serve as the primary means to assure that all work performed complies fully with the terms and standards of the contract.

The Contractor shall submit their proposed QCP to the Contracting Officer (KO) through the Contracting Officer's Representative (COR) for review within ten (10) calendar days after contract award (Deliverable 001). The Government will review the submission and notify the Contractor in writing of either acceptance or provide comments within ten (10) calendar days. If comments are provided, the Contractor shall have fifteen (15) calendar days to submit a final revised QCP. Upon receipt of the final QCP, the Government will provide written acceptance. Proposed QCP shall be submitted to the Contracting Officer (KO) through the Contracting Officer's Representative (COR) for review within ten (10) days after the date of contract award (**deliverable 001**).

Any proposed changes to the accepted QCP must be submitted to the Contracting Officer for approval no later than fifteen (15) calendar days prior to implementation. The same review timelines will apply to proposed changes.

At a minimum, the QCP must address the following elements to be acceptable:

(a) A chart showing the organizational structure and lines of authority, the names, qualifications, duties, responsibilities, and classification of each member of the Contractor's Quality Control Team.

(b) How the Contractor will monitor work to ensure performance complies with all

deliverables (e.g., timelines, deadlines, and goals).

(c) How the Contractor will monitor work to ensure performance complies with all specifications and requirements of the contract, including the contract's clauses.

(d) How the Contractor will monitor and ensure staff qualifications remain current and valid, including Department of Defense (DoD) Contractor Personnel Office (DOCPER) processes/approvals throughout contract performance.

(e) How the Contractor will ensure all keys issued will remain controlled items (Paragraph 1.7 Key Control).

(f) How the Contractor will inventory and track maintenance of all Government Provided Equipment/Materials.

(g) How the Contractor will identify, investigate, and correct any non-conforming performance and prevent similar deficiencies in the future; and

(h) How the Contractor will file and save all Quality Control related documents for the life of the contract plus 5 years.

1.6 Quality Assurance: The Government will evaluate the Contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan (QASP). The QASP outlines the Government's responsibilities for monitoring and assessing the Contractor's compliance with the performance standards specified in this contract. It defines how the performance standards will be applied, the frequency and methods of surveillance, and the acceptable quality levels (performance thresholds) that the Contractor must meet.

1.6.1 Recognized Holidays: The following information outlines recognized holidays applicable to this Performance Work Statement (PWS). If any documentation submissions (e.g., deliverables, reports, submittals) have deadlines that fall on a recognized holiday, the deadline for submission shall be the closest preceding workday.

1.6.1.1 U.S. Holidays: Work shall not be performed on U.S. federally recognized holidays that occur during the normal workweek unless otherwise directed by the Contracting Officer. When a U.S. holiday falls on a Saturday, it shall be observed on the preceding Friday; when it falls on a Sunday, it shall be observed on the following Monday.

New Year's Day January 1st
Presidents' Day 3rd Monday in February
Juneteenth June 19th
Labor Day 1st Monday in September
Veteran's Day November 11th
Christmas Day December 25th

M. L. King Memorial Day 3rd Monday in Jan
Memorial Day last Monday in May
Independence Day July 4th
Columbus Day 2nd Monday in October
Thanksgiving Day 4th Thursday in November

1.6.2 Operating Hours: The Government facility office hours, facility operating hours, and Contractor support hour requirements often coincide; however, they may differ depending on operational needs. Refer to the following for specific operating hours and Contractor support requirements:

1.6.2.1 Government Facility Office Hours: The Government facility office hours are from 0700 to 1700, Monday through Friday, excluding U.S. federally recognized holidays as identified in paragraph 1.6.1.1 above, or when the Government facility is closed due to local or national emergencies, administrative closures, or other Government-directed facility closings.

1.6.2.2 Government Facility Operating Hours: The Government facility operates between 0700 and 1700, Monday through Friday. The facility does not remain open during recognized U.S. holidays identified in paragraph 1.6.1.1 above, unless otherwise directed. Closures due to local or national emergencies, administrative actions, or similar Government-directed events will be communicated to the Contractor by the Contracting Officer.

1.6.2.3 Contractor Support Hours: The Contractor shall provide support between the hours of 0700 and 1600, Monday through Friday, excluding Federal holidays and periods when the Government facility is closed due to local or national emergencies, administrative closures, or similar Government-directed actions. The Contractor shall maintain an adequate workforce at all times to ensure uninterrupted performance of all tasks defined within this Performance Work Statement (PWS) whenever the Government facility is open. In hiring personnel, the Contractor shall prioritize workforce stability and continuity to support consistent contract performance.

1.6.2.4 Place of Performance: The work under this contract shall be performed at the Fort Bliss Military Police Station, Building 20709 Sergeant Major Blvd, Fort Bliss, Texas 79918.

1.7 Security Requirements: The following information is provided on security-related matters:

1.7.1 NCIC Check: Contractor personnel performing work under this contract must have a local background National Crime Information Center (NCIC) check at the time of proposal submission. Additionally, an annual NCIC check shall be conducted for all contractor personnel throughout the duration of the contract.

1.7.2 Access and general protection/security policy and procedures: The Contractor and all associated subcontractor employees shall provide all required information necessary to conduct background checks to meet installation access requirements. These checks will be conducted by the installation Provost Marshal's Office, the Directorate of Emergency Services, or the Security Office. Contractor personnel must comply with all personal identity verification requirements in accordance with FAR Clause 52.204-9, Personal Identity Verification of Contractor Personnel, as directed by the Department of Defense (DoD), Headquarters, Department of the Army (HQDA), and/or local policy. In addition to any changes authorized through the contract's changes clause, the Government may require modifications to contractor security practices or processes if the Force Protection Condition (FPCON) at any facility or installation changes.

1.7.2.1 Escorts: The Contractor and all associated subcontractor employees performing services under this contract shall be escorted at all times by CONUS security personnel or by an individual designated by the Contracting Officer Representative (COR) when accessing U.S. facilities or activities.

1.7.2.2 Contract Termination or Cancellation: Upon termination or cancellation of this contract, the Contractor shall collect all outstanding installation access passes issued to its personnel and return them to the issuing office within five (5) calendar days (Deliverable 002).

1.7.3 Personnel Security Clearance Requirements: *Reserved.*

1.7.3.1 Drug-Free Workforce: The Contractor shall comply with the Department of Defense Federal Acquisition Regulation Supplement (DFARS) clause 252.223-7004, Drug-Free Workforce. The Contractor shall conduct drug testing to ensure that all contractor personnel with Top Secret clearances are tested at least once annually during the contract period, as well as whenever there is reasonable suspicion of illegal drug use. All drug testing shall be conducted at the Contractor's expense. Positive drug test results shall be reported to both the Contracting Officer (KO) and Contracting Officer's Representative (COR) within 24 hours of the Contractor's receipt of the results. Records of all drug testing shall be maintained and made available to the COR upon request.

1.7.4 Background Checks: The Contractor shall ensure that all contractor and subcontractor employees performing services under this contract have passed a security check conducted by the State Police Department of their U.S. residence. Security checks previously completed as part of a personnel security clearance investigation or as a condition of prior employment satisfy this requirement. Documentation of such checks shall be made available to the KO or COR upon request. The Government reserves the right to exclude any employee from contract performance if a background check reveals that the individual poses a security risk. Such exclusion shall not relieve the Contractor of its obligation to perform all required services under this contract. If the Government determines additional background checks are necessary, the Contractor shall, upon request, provide the KO or COR with information on any contractor or subcontractor employee performing services under this contract:

- Full birth name
- Married name (if applicable)
- SSN or local equivalent (ID card number)
- Date of birth
- Place of birth (city, country)

1.7.4.1 Background Check Notification Requirements: If a background check on any contractor or subcontractor employee reveals criminal activity from any source, including CONUS law enforcement, the Contractor shall immediately notify the KO and COR. Notification shall include, at a minimum, the nature of the information discovered, and any actions taken by the Contractor in response. The Contractor shall make notification of:

(1) Traffic violations, excluding parking violations, shall be reported to the Contracting Officer (KO) or Contracting Officer's Representative (COR) only when the contract involves drivers providing services for the Government.

(2) The Contractor shall immediately report to the Contracting Officer (KO) and Contracting Officer's Representative (COR) any suspicious activity by Contractor employees,

subcontractors, or subcontractor employees that the Contractor believes may pose a risk to U.S. or CONUS national security, or an imminent risk of deadly bodily harm to any person.

(3) The Contractor shall promptly report any actions taken against Contractor employees, subcontractors, or subcontractor employees pursuant to this requirement to the Contracting Officer (KO) and Contracting Officer's Representative (COR).

1.7.4.2 Remedies. In addition to any other remedies available to the Government, the Contractor's failure to comply with the requirements of this paragraph may result in the Government requiring the Contractor to remove the Contractor employee(s) from performance of the contract.

1.7.4.3 Subcontracts. The Contractor shall include the substance of this paragraph and the preceding paragraph in all subcontracts.

1.7.5 Federal Installation/Facility Access: The Contractor and all associated subcontractor employees shall comply with applicable installation, facility, and area commander access and local security policies and procedures as provided by the Government representative. Employees performing services under this contract shall provide all information required for background checks to satisfy installation access requirements. These checks will be conducted by the installation Provost Marshal's Office, the Directorate of Emergency Services, the Security Office, or the CONUS equivalent.

1.7.5.1 Contractor Non CAC Eligible Requirements for DOD Facility and Installation Access Contractor and subcontractor employees shall comply with adjudication standards and procedures using the National Crime Information Center Interstate Identification Index (NCIC-III) and Terrorist Screening Database (TSDB) in accordance with Army Directive 2014-05/AR 190-13, applicable installation and facility access policies provided by the Government representative, and, for OCONUS locations, the applicable Status of Forces Agreements and theater regulations.

1.7.5.2 Access to Government Information Systems: All Contractor and subcontractor employees requiring access to Government information systems must be registered in the Army Training Certification Tracking System (ATCTS) at the commencement of services. They must complete the Department of Defense Information Assurance Awareness training prior to access and annually thereafter.

1.7.6 PHYSICAL Security: The Contractor shall safeguard all Government equipment, information, and property provided for Contractor use. At the close of each work period, Government facilities, equipment, and materials shall be secured in accordance with the Army Physical Security Program (AR 190-13).

1.7.6.1 Operations Security (OPSEC) Requirements: Contractor personnel shall adhere to all facility security policies and restrictions. The Contractor shall immediately report any suspicious activities to designated security personnel.

1.8 Post Award Conference/Periodic Progress Meetings: The Contractor shall attend a post-award conference convened by the contracting activity or contract administration office in accordance with FAR Subpart 42.5. The Contracting Officer, Contracting Officer's

Representative (COR), and other Government personnel, as appropriate, may meet periodically with the Contractor to review performance. During these meetings, the Contracting Officer will apprise the Contractor of the Government's assessment of performance, and the Contractor shall inform the Government of any issues being experienced. Appropriate actions shall be taken to resolve outstanding matters. These meetings shall be at no additional cost to the Government.

1.8.1 : Meeting Participation: The Contractor shall attend, participate in, and provide input to scheduled and unscheduled meetings, conferences, and briefings related to the functions and services herein, as required by the Government to ensure effective communication and dissemination of necessary information. The Contract Manager or designated representative shall attend meetings as requested by the Government. Attendees may include Contractor managerial, supervisory, and other personnel knowledgeable of the subject matter. Meetings may start or end outside regular duty hours.

1.9 Contracting Officer's Representative (COR): Refer to Part 2 of this PWS for the definition of a COR. The Contracting Officer will appoint and designate a COR by letter, a copy of which will be provided to the Contractor. The designation letter outlines the COR's responsibilities and limitations, especially regarding changes to costs, prices, estimates, or delivery dates. The COR is not authorized to change any contract terms or conditions, obligate the Government, or request work not specified in the contract. The COR monitors technical contract aspects and assists in administration. Authorized functions include ensuring Contractor compliance with technical requirements, performing necessary inspections, maintaining communication with the Contractor on technical matters, issuing written interpretations of technical requirements, monitoring Contractor performance, notifying the Contracting Officer and Contractor of deficiencies, coordinating availability of Government property, and facilitating Contractor personnel site entry.

1.10 Key Personnel: The Government considers the following personnel as key to this contract: Program/Contract Manager – (TBD). The Contractor shall provide a Program/Contract Manager Alternate to act in the absence of the primary manager. Curriculum Vitae (CV) for both individuals shall be submitted in writing to the Contracting Officer no later than five (5) calendar days after contract award (Deliverable 003). The Contracting Officer must accept these CVs prior to the individuals performing any contract tasks. The Contract Manager and Alternate shall have full authority to act on all contract matters related to daily operations and shall be available from 0700 to 1600, Monday through Friday. Qualifications for all key personnel are detailed below:

1.11 Identification of Contractor Employees: All Contractor personnel attending meetings, answering Government telephones, or working in situations where their Contractor status may not be obvious must clearly identify themselves. This includes proper marking of signature blocks on correspondence to avoid any impression that they are Government officials. The Contractor shall ensure all documents or reports produced are suitably marked as Contractor products or clearly indicate Contractor involvement.

1.11.1 Contractor Workspace Identification: Contractor workspaces (staging sites, on-site offices, desks, or work areas) shall display signage indicating occupancy by Contractor employees to inform Government employees and the public that the occupants are not Government personnel. The proposed signage shall be submitted to the Contracting Officer via

the COR for review and acceptance within ten (10) calendar days after contract award (Deliverable 004). Workspace sign location shall be coordinated with the COR. Contractor employees shall identify themselves by name and company affiliation when answering telephones, presenting briefings, or attending meetings and seminars. All Contractor correspondence (written, facsimile, and email) shall include the company name. Vehicle requirements are addressed in Part 4, paragraph 4.4.

1.11.2 Contractor Identification Badges: Contractor personnel shall be readily identifiable by displaying badges in accordance with Contractor Identification (AE Reg. 27-715). When required by the Government, Contractor and subcontractor employees who access U.S. facilities or activities must present a valid Government-issued photo ID and comply with all facility security policies and restrictions. Government-issued access badges shall not be worn outside designated facilities or made visible to the general public. All Government-issued identification must be returned to the appropriate U.S. Government authority within five (5) calendar days after contract duties end.

1.12 Data Rights: The Government shall have unlimited rights to all documents and materials produced under this contract. All documents and materials, including software source code, developed under this contract shall be Government-owned and shall be the exclusive property of the Government, with all ownership and copyright rights reserved accordingly. The Contractor shall not use, reproduce, or sell these documents or materials without the prior written permission of the Contracting Officer. All materials delivered to the Government shall be solely for Government use and shall not be used by the Contractor for any other purpose. This clause does not abrogate any other Government rights.

1.13 Non-Disclosure Requirements: Performance under this contract may require the Contractor to access proprietary data or information belonging to a Government agency, another Government contractor, or that is otherwise sensitive, such that improper dissemination would harm Government or other interests. The Contractor and its personnel shall not disclose or release any data or information developed or obtained during contract performance except to authorized Government personnel or as expressly approved in writing by the Contracting Officer. Proprietary data bearing restrictive legends shall not be used, disclosed, or reproduced except as permitted under this PWS. All documentation containing personally identifiable information (PII) shall be safeguarded in accordance with the Privacy Act of 1974, Public Law 93-579, 5 U.S.C. § 552a.

1.14 Protection of Government and Contract Information: In accordance with the Public Use Notice of Limitations issued by the Defense Imagery Management Operations Center (DIMOC) and available at www.dimoc.mil, the Contractor shall not disclose or cite any contract-related information—including pictures, locations, or other sensitive details—in any hard copy or digital marketing materials, including company websites.

1.15 Advertisement and Social Media: The Contractor shall not post any information to public websites or social media platforms—personal or professional—that discloses names, locations, hotel data, participants, discussions, photographs, or any other contract-related details before, during, or after the period of performance without the Government's express written consent. The use of propaganda is prohibited per DoD Commercial Use of Imagery Guidelines, accessible at <https://www.arnorth.army.mil/Resources/Imagery-Use/>. The Contractor shall not cite or use contract-related information in any marketing materials or

websites without prior Government approval.

1.16 Information Assurance: Contractor and subcontractor personnel shall not transmit Government documents or information using unsecured methods that do not comply with the National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171, Protecting Controlled Unclassified Information (CUI) in Nonfederal Information Systems and Organizations. Prohibited transmission methods include personal email accounts, public cloud storage services, social media platforms, or instant messaging applications. Approved transmission methods include Government-authorized sites such as DoD SAFE (<https://safe.apps.mil>), and the All Partners Access Network (APAN) (<https://community.apan.org/>), as well as other Government-approved means.

1.17 Organizational Conflict of Interest (OCI): Contractor and subcontractor personnel performing work under this contract may receive or have access to proprietary or source selection information—including cost or pricing data, budget analyses, specifications, or work statements—or perform evaluation services that could create an actual or potential OCI as defined in FAR Subpart 9.5. The Contractor shall promptly notify the Contracting Officer if it becomes aware of any such OCI and shall submit an OCI Mitigation Plan (Deliverable 005) for approval. Acceptance of the OCI Mitigation Plan is at the sole discretion of the Contracting Officer. If the Contracting Officer determines that the OCI cannot be adequately avoided or mitigated, the Government may take any necessary remedies, including prohibiting the Contractor's participation in related future contracts.

1.18 Safety: The following provides information pertaining to Safety and Accident Prevention:

1.18.1 Safety Laws and Regulations: The Contractor shall comply with FAR 52.236-13, Accident Prevention (November 1991), and all referenced documents therein, including but not limited to the U.S. Army Corps of Engineers Safety and Health Requirements Manual (EM 385-1-1).

The requirements under FAR 52.236-13 and specifically of the EM 385-1-1 include, but are not limited to, the following:

(a) Prior to commencing work at the job site, the Contractor shall develop an Accident Prevention Plan (APP) tailored specifically to the contract's work scope and hazards. This plan shall implement in detail the pertinent requirements of EM 385-1-1 and shall be submitted for review and acceptance by designated Government personnel. Specific requirements for the APP are detailed in Section 01.A and Appendix A of EM 385-1-1. The manual is available online at www.usace.army.mil.

(b) Before beginning any activity involving hazards not previously encountered in project operations, or when a new work crew or subcontractor is to perform work, the Contractor shall prepare an Activity Hazard Analysis (AHA) in accordance with paragraph 01.A.09 of EM 385-1-1.

(c) The Contractor shall require all subcontractors to submit their own plans of operations outlining the methods they propose to use in accomplishing major phases of work.

(d) The Contractor shall participate in conferences convened by the Contracting Officer

prior to the start of each major phase of work to discuss the submitted plans. These plans shall include all pertinent information such as the layout of haul roads, access roads, storage areas, electrical distribution lines, methods to minimize exposure to overhead loads, and access to work areas. The plan for the initial work phase shall be submitted within fifteen (15) calendar days after contract award. Plans for subsequent major phases shall be submitted no later than fifteen (15) calendar days prior to commencing work on each phase; and

(e) In all areas where construction, demolition, alteration, building, or similar activities occur, the Contractor shall ensure that all personnel working on or visiting the site comply with the following minimum personal protective clothing and equipment requirements:

- (i) Short sleeve shirt.
- (ii) Long trousers.
- (iii) Steel-toed safety boots; and
- (iv) Hard hat.

1.18.1.2 Safety Compliance: In addition to other accident prevention requirements specified in this contract, the Contractor shall comply with all applicable Federal and State laws and regulations governing safety and health protection on construction sites, as well as other relevant occupational safety codes. The Contractor shall submit a compliance plan that considers the conditions of the work as described in the design, technical proposal, and Government operational activities. The plan shall identify the safety coordinator and detail the implementation of all accident prevention provisions of this contract.

1.19 Required Training: The following training requirements apply to Contractor and subcontractor personnel:

1.19.1 Anti-Terrorism (AT) Level I Training: All Contractor employees, including subcontractors, shall complete AT Level I training within fifteen (15) calendar days after contract start or incorporation of this requirement, or within fifteen (15) days of employment of new personnel (Deliverable 006). Contractor personnel travelling overseas shall complete area of responsibility (AOR)- specific AT awareness training for U.S.-based Contractor employees and associated subcontractor employees. The Contractor shall submit certificates of completion for each employee to the COR (or Contracting Officer if no COR is assigned) within fifteen (15) calendar days of training completion (Deliverable 007). AT Level I training is available at <http://jko.jten.mil>. Refresher training must be completed annually, except AOR-specific training, which shall comply with local policies.

1.19.1.1 Alternate Training Method: If online training is unavailable, the Contractor shall coordinate with the COR, who will contact the local AT Officer for classroom training. Classroom attendees will receive a certificate or attendance roster signed by the AT Officer. Verification shall be provided to the COR within seven (7) calendar days after training completion.

1.19.2 OPSEC Training: All Contractor employees shall complete Level I OPSEC training within thirty (30) calendar days of employment (Deliverable 008). Verification shall be provided to the COR within fifteen (15) calendar days of completion. OPSEC Level I training is available at <http://www.cdse.edu/catalog/elearning/GS130.html>. Annual refresher training is required (Deliverable 009), with verification submitted within fifteen (15) calendar days of completion.

1.19.2.1 Alternate OPSEC Training: If online training is unavailable, the Contractor shall coordinate with the COR to arrange classroom training with the local OPSEC Officer. Verification shall be submitted within seven (7) calendar days after completion (Deliverable 010).

1.19.3 iWATCH Training: The Contractor and subcontractors shall brief all employees on the local iWATCH program as provided by the requiring activity's ATO. This training educates employees on suspicious behaviors and reporting procedures. Training shall be completed within fifteen (15) calendar days of contract award and within fifteen (15) days of each new employee's start date. Results shall be reported to the COR within fifteen (15) days after contract award and within fifteen (15) days of each new employee's start date (Deliverable 011). Verification shall be provided to the COR within five (5) calendar days after completion (Deliverable 012).

1.19.4 Information Assurance (IA) / Information Technology (IT) Training: All Contractor and subcontractor employees requiring access to Government information systems must complete DoD IA awareness training prior to network access and annually thereafter. Verification shall be provided to the COR within fifteen (15) calendar days after training completion (Deliverable 013).

1.19.4.1 All Contractor employees, including subcontractors, performing information technology (IT) and information assurance (IA) functions shall comply with Department of Defense (DoD) and Army training requirements in accordance with DoD Directive (DoDD) 8570.01, DoD 8570.01-M, and Army Regulation (AR) 25-2. This training shall be completed within thirty (30) calendar days of employment. Training is available at <https://cs.signal.army.mil/>.

1.19.4.2 All Contractor employees, including subcontractors, performing services under this contract who require access to a Government information system must be registered in the Army Training Certification Tracking System (ATCTS). Verification of registration shall be submitted to the Contracting Officer's Representative (COR) within ten (10) calendar days of registration (Deliverable 014). Contractor personnel must complete refresher training every twelve (12) months, and verification of completion shall be provided to the COR within thirty (30) calendar days after training (Deliverable 015).

1.19.5 Personally Identifiable Information (PII): Personnel accessing PII shall complete "Identifying and Safeguarding PII" training within thirty (30) calendar days of employment, with annual refresher training thereafter. Training certificates shall be submitted to the COR within five (5) calendar days of completion (Deliverable 016). Training is available at <https://securityawareness.dcsa.mil/piiv2/index.htm>.

1.20 Government Property and Services: Refer to Part 3 of this PWS for Government-furnished property (GP) details. The Contractor shall submit a Property Management Plan for all GP, including printers and Intoxilyzer 9000 machines, to the Contracting Officer and Property Administrator via the COR within thirty (30) calendar days after contract award (Deliverable 017).

1.20.1. All Government-furnished equipment remains Government property and must be properly accounted for.

1.20.2 The Contractor shall not utilize the intoxilyzers or printers for outside agencies.

1.20.3 Instruments failing inspection or calibration must be immediately removed from service and repaired or replaced by factory-certified technicians, with all actions documented in detailed service reports.

1.20.4 Removal of Government-furnished equipment for off-site maintenance requires joint execution of DA Form 2062 (Hand Receipt) by the Contractor's representative and a designated Government representative. Equipment must be returned fully operational within ninety (90) calendar days.

1.20.5 The Contractor assumes full liability for all Government-furnished equipment from the moment of transfer into the Contractor's custody until its official return to and acceptance by the Government. In the event of loss, theft, damage, or destruction of the equipment while in the Contractor's possession, the Contractor shall be responsible, at the Government's discretion, for repair, replacement with a new unit of equal or greater capability, or reimbursement of the full fair market value of the affected equipment. This liability applies regardless of the cause of loss or damage, and the Contractor shall bear all associated costs necessary to restore or replace the equipment.

1.21 Safety Requirements:

1.21.1 The Contractor shall comply with OSHA, State, U.S. Army, U.S. Army Yuma Proving Ground, and other applicable safety standards.

1.21.2 The Contractor shall observe and comply with all local policies and procedures concerning fire, safety, environmental protection, sanitation, security, and possession of firearms or other lethal or illegal weapons or substances.

1.21.3 The Contractor shall report all accidents and occupational illnesses immediately to the YPG Mission Safety Office through the Contracting Officer's Representative (COR).

1.22 Environmental Requirements: (As determined by YTC Safety Review)

The Contractor shall comply with all applicable Federal, State, and Local laws and regulations, and shall employ standard industry practices to avoid adverse environmental impacts. These requirements include, but are not limited to, 32 CFR Part 651 (Environmental Analysis of Army Actions) and the local Environmental Handbook for the Requiring Activity Workforce.

The Contractor shall ensure that all activities performed by its personnel, subcontractors, and suppliers are conducted in accordance with these authorities. The Contractor shall obtain all necessary permits, licenses, approvals, and certificates required to perform environmental work. For work requiring facility clearances, such as digging or drilling, the Contractor shall obtain such clearances and permits in accordance with all local and installation requirements, coordinating with the installation point(s) of contact prior to commencing work.

All spills must be reported immediately to (915) 568-3782..

The Contractor shall develop and submit an Environmental Protection Plan (EPP) to the Contracting Officer (KO) and Contracting Officer's Representative (COR) for review and approval within thirty (30) calendar days after contract award. Where applicable, Best

Management Practices shall be identified and implemented to mitigate adverse environmental impacts.

1.23 Special Qualifications: The Contractor is required to be a Texas State Certified Intoxilyzer 9000 service and maintenance provider, capable of training and certifying federal law enforcement officers. All work must comply with Texas Breath Alcohol Testing Regulations, Texas Forensic Science Commission standards, and Texas Department of Public Safety regulations. The Contractor shall maintain a minimum operational readiness rate of 95 percent for the Intoxilyzer instruments. A copy of the certification shall be submitted to the Contracting Officer's Representative (COR) within fifteen (15) calendar days of contract award (Deliverable 018).

PART 2 DEFINITIONS & ACRONYMS

2 Definitions and Acronyms.

2.1 Definitions. Although not inclusive of every term used within this PWS, the following provides a list of definitions used throughout this PWS and commonly used in the acquisition field.

Contracting Officer – means a person with the authority to enter into, administer, and/or terminate contracts and make related determinations and findings on behalf of the Government. Note: The only individual who can legally bind the Government.

Contracting Officer's Representative (COR) – As defined in DFARS 202.101, means an individual designated and authorized in writing by the Contracting Officer to perform specific technical or administrative functions. DoD Instruction (DoDI) 5000.72, Part II Definitions states the following when defining a COR: “Defined in subpart 202.101 of Reference (f). Any individual delegated responsibilities pursuant to subpart 1.602-2 of Reference (e), regardless of local terminology, must be certified in accordance with this instruction. For example, local terminology can be COR, Contracting Officer’s technical representative, technical point of contact, technical representative, alternate COR, administrative COR, assistant COR, line-item manager, task order manager, quality assurance personnel, quality assurance evaluator, or COR management.” In addition, Army Regulation 70-13, Chapter 2, paragraph 2-2g, states, in part, the following when providing other surveillance support personnel to assist the COR when needed, “...These other surveillance support personnel may serve as on-site representatives of the COR in performance of actual contract surveillance if they meet all COR requirements and have been appointed by the Contracting Officer as alternate CORs.”

Contractor – means a supplier or vendor awarded a contract to provide specific supplies or services to the Government. The term used in this contract refers to the prime.

Contractor-acquired Property - means property acquired, fabricated, or otherwise provided by the Contractor for performing a contract and to which the Government has title.

Day – means, unless otherwise specified, a calendar day.

Defective Service – means a service output that does not meet the standard of performance associated with the Performance Work Statement.

Deliverable – means anything that can be physically delivered, but may include non-manufactured things such as meeting minutes or reports.

Government-furnished Property – As reflected in FAR 52.245-1, Government-furnished Property “means property in the possession of, or directly acquired by, the Government and subsequently furnished to the Contractor for performance of a contract. Government-furnished property includes, but is not limited to, spares and property furnished for repair,

maintenance, overhaul, or modification. Government-furnished property also includes contractor-acquired property if the contractor-acquired property is a deliverable under a cost contract when accepted by the Government for continued use under the contract.

Government Property - means all property owned or leased by the Government. Government property includes both Government-furnished and Contractor-acquired property. Government property includes material, equipment, special tooling, special test equipment, and real property. Government property does not include intellectual property and software.

Property Administrator - means an authorized representative of the Contracting Officer appointed in accordance with agency procedures, responsible for administering the contract requirements and obligations relating to Government property in the possession of a Contractor.

High Level Objective (HLO) – means a key overarching result-based objective for a project necessary to achieve the project’s vision. HLOs are similar to Level 2 in a Work Breakdown Structure. Each HLO may contain several statements to flesh out the areas necessary to meet the objective.

Physical Security – refers to the part of security concerned with physical measures designed to safeguard personnel, prevent unauthorized access to equipment, installations, materials, and documents, and safeguard against espionage, sabotage, damage, and theft.

Quality Assurance – (or Government contract quality assurance) means the various functions, including inspection, performed by the Government to determine whether a Contractor has fulfilled the contract obligations pertaining to quality and quantity.

Quality Assurance Surveillance Plan (QASP) – means the key Government-developed surveillance process document and is applied to Performance-Based Service Contracting (PBSC). The QASP is used to manage Contractor performance assessment by ensuring that systematic quality assurance methods verify that Contractor quality control efforts are timely, effective, and deliver the results specified in the contract or task order. The QASP directly corresponds to the performance objectives and standards (i.e., quality, quantity, timeliness) specified in the Performance Work Statement (PWS). It provides specific details on how the Government will survey, observe, test, sample, evaluate, and document Contractor performance results to determine if the Contractor has met the required standards for each objective in the PWS. The QASP, with very few, if any exceptions, is an internal Government document.

Quality Control – means all necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

Statement – means the specific results-based activities required to satisfy HLOs. A statement contains a result, the context of the statement, and the required action(s). Statements focus on “what” is to be accomplished; however, they are not prescriptive in describing “how” the outcome is to be achieved. Each HLO may have several statements to flesh out the areas necessary to meet the objective. Statements are similar to Level 3 in a

Work Breakdown Structure.

Subcontractor – means one that enters into a contract with a prime Contractor. The Government does not have privity of contract with the subcontractor.

Workday - The number of hours per day the Contractor provides services in accordance with the contract.

Work Week - Monday through Friday, unless otherwise specified.

2.2 Acronyms: Although not inclusive of every term used within this PWS, or that may be included in an acquisition, the following provides a list of acronyms commonly used in the acquisition field.

ACOR	Alternate Contracting Officer's Representative
AFARS	Army Federal Acquisition Regulation Supplement
AHA	Activity Hazard Analysis
AOR	Area of Responsibility
AR	Army Regulation
AT	Anti-terrorism
ATCTS	Army Training Certification Tracking System
CAC	Common Access Card
CCE	Contracting Center of Excellence
CFR	Code of Federal Regulations
CONUS	Continental United States (excludes Alaska and Hawaii)
COR	Contracting Officer's Representative
COTS	Commercial-Off-the-Shelf
DA	Department of the Army
DD250	Department of Defense Form 250 (Receiving Report)
DD254	Department of Defense Contract Security Requirement List
DFARS	Defense Federal Acquisition Regulation Supplement
DMDC	Defense Manpower Data Center
DoD	Department of Defense
FAR	Federal Acquisition Regulation
GFP	Government Furnished Property
HLO	High Level Objective
HIPAA	Health Insurance Portability and Accountability Act of 1996
IA	Information Awareness
IAC	Installation Access Control
IACO	Installation Access Control Office
ID	Identification
IGCE	Independent Government Cost Estimate
IT	Information Technology
JTR	Joint Travel Regulation
JPAS	Joint Personnel Adjudication System
KO	Contracting Officer
OCI	Organizational Conflict of Interest
OCNUS	Outside Continental United States (includes Alaska and Hawaii)
ODC	Other Direct Costs

OPSEC	Operations Security
PA	Property Administrator
PII	Personally Identifiable Information
PIPO	Phase In/Phase Out
POC	Point of Contact
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Program
RA	Requiring Activity
TE	Technical Exhibit
USAG	United States Army Garrison
UOM	Unit of Measure
TE	Technical Exhibit

PART 3

GOVERNMENT PROPERTY (GP) AND SERVICES (GFE)

3.1 Government Furnished Property FAR 52.245-1, the foundational clause for government property, outlines the contractor's responsibilities for managing government property in their possession. Additionally, FAR 52.245-9 addresses the charges for a contractor's use of government property.

3.1.1 Property Management System (PMS) Procedures: The Contractor shall submit their Property Management System (PMS) procedures no later than thirty (30) calendar days after contract award (Deliverable 019). The PMS shall detail the Contractor's processes for managing Government property and demonstrate how it meets the ten (10) established outcomes: Acquisition; Receipt (including Identification); Records; Physical Inventory; Subcontractor Control; Reports; Relief of Stewardship Responsibility/Liability; Utilization (including Consumption, Movement, and Storage); Maintenance; and Property Close-Out (including Disposition). This documented PMS serves as the Contractor's standard operating procedure (SOP) for daily management of Government property by operational personnel. The PMS procedures are living documents that may require updates as processes evolve; however, the Contractor shall not unilaterally change these procedures. Any proposed changes must be submitted to the Property Administrator for review and concurrence prior to implementation. DFARS 252.245-7003, provides guidance on what constitutes an acceptable contractor system for managing and controlling Government Property.

3.1.2 A joint inventory of Government-Furnished Property (GFP) shall be completed within the timeline specified in the Government-approved transition plan, between the contractor and organization's hand receipt holder. Any items missing or found not to be in working order shall be documented, and the Contracting Officer's Representative (COR) shall be notified in writing. The Contractor and Government representative shall jointly assess and document the condition and working status of all equipment. The Contractor's rejection of GFP does not relieve the Contractor of its obligation to perform under this contract, but it will relieve the Government of the responsibility to provide the same or similar GFP in the future. The Contractor shall use Government property solely for performance of this contract and shall conduct a 100% inventory of GFP at least annually, in accordance with the Contractor's approved Property Management System procedures. Inventory results shall be provided in accordance with the format prescribed by DFARS PGI 245.103-72.

3.1.2.1 Final Inventory. At contract completion, the Contractor and designated Government representative(s) shall conduct a joint inventory of all Government-furnished property.

3.1.3 Property Markings and Removal: The Contractor shall not mark, affix decals, emblems, or signs bearing the Contractor's name on Government property. The Contractor shall not remove Government-Furnished Property (GFP) from the installation or other supported areas without the written approval of the Contracting Officer (KO).

3.1.4 Warranty Tracking and Enforcement: The Contractor shall track and maintain warranty records for all Contractor property and supplies used under this contract, including both Government-furnished and Contractor-acquired items. The Contractor shall enforce all

applicable warranties and ensure no unnecessary expenditure of Government funds—either direct or reimbursed—for repair or maintenance of warranted items. The Contractor shall promptly inform the Government of any difficulties encountered in warranty enforcement and of instances in which the cost of enforcement would exceed the anticipated benefits.

3.1.5 Modification or Cannibalization of Property: The Contractor shall not modify or cannibalize any Government-Furnished Property (GFP) or Contractor-Acquired Property (CAP) without prior written approval from the Contracting Officer (KO).

3.1.6 Withdrawal or Replacement of Government Property: The Government may withdraw or replace GFP at any time during the contract. The KO will provide the Contractor with written notice at least thirty (30) calendar days prior to the withdrawal of GFP and will provide instructions regarding the method(s) for replacement. The Contractor shall ensure that all IT equipment is purged of proprietary data prior to turn-in or disposal in accordance with instructions from the Property Loss Coordinator Officer (PLCO) or KO.

3.1.7 Liability and Reporting of Fraud, Waste, and Abuse: The Contractor may be held liable for loss, damage, or destruction of Government property resulting from negligence or willful misconduct. The Contractor shall exercise the utmost care in preserving Government property. The Contractor shall implement a system that allows employees to report fraud, waste, and abuse to supervisors without fear of retribution. Additionally, the Contractor shall brief all employees on the procedures for reporting such issues through established Government programs.

3.1.8 Loss of any sensitive item shall be considered a material weakness in the Contractor's property accountability and will result in revocation of the Government's assumption of risk. Furthermore, the KO may revoke the Government's assumption of risk, as specified in FAR 45.104, if the Property Administrator determines that the Contractor's property management practices are inadequate or pose an undue risk to the Government. In the event that any sensitive or Controlled Cryptographic Item (CCI) Government property furnished to or acquired by the Contractor is lost, damaged, destroyed, or stolen, the Contractor shall notify the Contracting Officer's Representative (COR) in writing within one (1) hour of discovery. The notification shall include a description of the item, serial number, and last known location. All losses shall be reported in accordance with FAR 52.245-1 and approved Contractor procedures.

3.2 Emergency and Rescue

3.2.1 Emergency Medical and Rescue Services: The Government will provide emergency medical and rescue services to prevent loss of life, limb, or undue suffering within areas served by the applicable installation emergency services provider. The Government reserves the right to seek reimbursement for medical services rendered, as appropriate.

3.2.2 Fire and Security Services: The Government will provide installation of fire services, including firefighting, fire prevention inspections, and investigations; installation of security services; confined space rescue; and Hazardous Material (HAZMAT) first response.

3.3 Telecommunications/Utilities

3.3.1 Telecommunications Access: The Government will provide reasonable access to Government-furnished telecommunications for official use related to this contract. Services include on-post telephone service and Defense Switched Network (DSN) access. The Contractor shall reimburse the Government for any unofficial telephone usage not incidental to contract performance. The Contractor shall ensure compliance with AR 25-1, Information Assurance, concerning telecommunications use and access. The Government will not reimburse additional services or special connectivity for Contractor-unique equipment, software, or corporate requirements.

3.3.2 Utilities: The Government will furnish appropriate amounts of heat, heating fuels, gas, electricity, sewage, and water utilities as currently installed in Government-Furnished Facilities (GFF) for use under this contract. Utility services vary by facility. The Contractor shall not alter or modify any Government-provided utility systems or components, nor install any Contractor-Furnished Equipment (CFE) components or systems without prior written approval from the Contracting Officer (KO) or designated representative, coordinated through the Directorate of Public Works (DPW).

3.3.3 Local Area Network (LAN) Access: The Government will provide limited access to the existing Local Area Network (LAN), including electronic mail (e-mail) services. The Government will determine the number of active LAN drops and e-mail accounts made available. The Contractor shall use LAN and e-mail services solely for official Government work required under this contract.

3.3.4 Radio Frequency Assignments: Radio frequency assignments and authorizations will be controlled and furnished by the Government. The Contractor shall not operate any radio equipment (e.g., Family Radio Service [FRS] or General Mobile Radio Service [GMRS] devices operating in the 450-470 MHz band at less than 50 watts) on the installation without proper authorization.

3.4 Government Owned Vehicles “Reserved.”

3.5 GFE Tools, Hand Tools, Equipment; Test, Measurement and Diagnostic Equipment (TDME) Calibration Services

3.5.1 Property, Equipment, and Disposal: All property, equipment, hand tools, parts, furnished materials, and scrap metals resulting from or provided under this contract shall remain the property of the Government. Unserviceable or non-repairable equipment, hand tools, parts, scrap metals, and materials shall be disposed of by the Contractor in accordance with DFARS 252.245-7005, Management and Reporting of Government Property. Contractors are required to complete inventory disposal schedules using the Government Furnished Property (GFP) Module within the Procurement Integrated Enterprise Environment (PIEE), replacing the Defense Contract Management Agency (DCMA) Plant Clearance Automated Reutilization Screening System (PC ARSS) e-Tool.

3.5.2 Parking: The Government will provide designated parking areas for privately owned vehicles (POVs). Contractor personnel shall comply with all local regulations and directives governing POV traffic and parking.

3.5.3 Equipment Provided by the Government: The Government will furnish three (3) Intoxilyzer 9000 machines, three (3) laser printers, two (2) tables, chairs, two (2) wall cabinets, and two (2) four-drawer lockable cabinets. Any alterations to Government property must receive prior written approval. Property shall be returned to its original condition, if applicable, before contract completion. The Contractor shall be responsible for any damage or loss of use resulting from negligence.

PART 4
CONTRACTOR FURNISHED ITEMS AND SERVICES

4 Contractor Furnished Items and Responsibilities.

4.1 General: The Contractor shall provide all labor, supervision, transportation, vehicles, supplies, equipment, materials, facilities, and services required to perform work under this contract that are not listed as Government-furnished in Section 3 of this PWS.

4.2 Materials: The Contractor shall furnish all necessary materials to certify and maintain the Intoxilyzer machines in operational condition, including but not limited to mouthpieces, simulator solutions, acetone, Intoxilyzer simulator units, compressed gases (NOS), handheld tubes, and logbooks.

4.3 Equipment: The Contractor shall provide all equipment necessary to meet the requirements outlined in this PWS.

PART 5

SPECIFIC TASKS

5.1 Basic Services. The Contractor shall provide all skilled personnel, equipment, supplies, tools, materials, supervision, and other items necessary to perform the services prescribed in this Performance Work Statement (PWS) and meet the performance requirements, except for those items specified as Government-Furnished Property and Services.

5.2 Tasks: The tasks include, but are not limited to, the following:

5.2.1 The Contractor shall provide training to Fort Bliss Law Enforcement Officers on all aspects of the use, knowledge, and certification of the Intoxilyzer 9000 Breathalyzer Machine.

5.2.2 Training shall include, at a minimum, all necessary materials, equipment, and supplies required to successfully certify Fort Bliss personnel to operate the Intoxilyzer 9000 and testify in court.

5.2.3 The Contractor shall conduct Intoxilyzer 9000 certification training annually in July for 10 to 15 Fort Bliss Law Enforcement Officers and provide annual recertification training every February for 20 to 30 officers. Each officer is expected to maintain current certification to operate the machine and provide court testimony.

5.2.4 The Contractor shall maintain records of all tests, analyses, diagnostic checks, error conditions, maintenance, operator records, certification records, laboratory records, and other Intoxilyzer operations for a period of five (5) years and provide such records to the Government upon request within a timely manner.

5.2.5 The Contractor shall conduct calibration and certification of three (3) Intoxilyzer 9000 machines within thirty (30) calendar days of contract award and annually thereafter.

5.2.5.1 Maintenance of instrumentation shall follow proper quality control guidelines and analytical methods pertaining to evidentiary collection of breath alcohol samples and shall be performed between the 1st and 20th day of each month.

5.2.5.2 The Contractor shall notify and schedule maintenance and inspections with the Contracting Officer's Representative (COR) at least 24 hours prior to performing services.

5.3 Service Contract Reporting: Service Contract Reporting does not apply to this contract.

5.4 Emergency and Responsive Services

5.4.1 In the event of machine failure during normal operating hours as described under PWS 1.8.1, the Contractor shall respond within three (3) hours to diagnose the problem

and provide a report explaining the cause of failure.

5.4.2 The Contractor shall respond to emergency calls outside normal duty hours, as needed, to support defective Intoxilyzer 9000 machines, as described under PWS 1.5.4.2.

5.4.3 If the Intoxilyzer 9000 requires service due to failure or malfunction, the Contractor shall sign DA Form 2062 (Hand Receipt) with the COR and transport the equipment to a certified laboratory for repair or testing.

5.5 Deliverables

5.5.1 Monthly Diagnostic Reports. The Contractor shall provide a Monthly Diagnostic Report to the COR no later than the 5th calendar day of each month (Deliverable 020). The report shall include, at a minimum, maintenance and repair information beyond normal wear and tear.

5.5.1.1 Monthly Invoice: The Contractor shall submit a monthly invoice to the COR no later than the 5th calendar day of the following month (Deliverable 021).

5.5.1.2 Expert Testimony: The Contractor shall provide expert testimony as required, verifying certifications, techniques, methods, calibrations, and maintenance.

PART 6

APPLICABLE PUBLICATIONS AND FORMS

6.1 Applicable Publications (Current Editions): The following publications, manuals, regulations, etc. are mentioned in this PWS and are listed below.

- 6.1.1** Department Of Defense Contract Security Classification Specification (DD Form 254)
- 6.1.2** Department of Defense Security Agreement (DD Form 441)
- 6.1.3** National Industrial Security Program Operating Manual (DoD 5220.22-M)
- 6.1.4** Installation Access Control (AE Reg 190-16)
- 6.1.5** The Army Physical Security Program (AR 190-13)
- 6.1.6** Contractor Identification (AE Reg 27-715)
- 6.1.7** U.S. Army Corps of Engineers Safety and Health Requirements Manual (EM 385-1-1)
- 6.1.8** Information Assurance Workforce Improvement Program (DoD 8570-M)
- 6.1.9** Information Assurance Training Certification and Workforce Management Directive (DoDD 8570.01)
- 6.1.10** Information Assurance (AR 25-2)
- 6.1.11** Electromagnetic Compatibility Directive (2004/108/EC)
- 6.1.12** Policies and Procedures for Property Accountability (AR 735-5)

6.2 APPLICABLE PUBLICATIONS (CURRENT EDITIONS)

The Contractor (to include Subcontractors) must abide by all applicable regulations, publications, manuals, and local policies and procedures.

DoD 5200.08-R, Physical Security
Program 32 CFR 147.24, The
National Agency
AR 190-13, The Army Physical
Security AR 385-10, The Army
Safety Program
DA Pam 385-40, Army Accident Investigations and
Reporting AR 190-45, Law Enforcement Reporting
AR 190-51, Security of Unclassified Property
Standard Operating Procedures: Evidential Breath Alcohol Instrument Calibration
(OSD-CAL-01) Texas Breath Alcohol Testing Program Operator Manual (Intoxilyzer
900)

a. Forms. Mandatory records and report forms are listed below.

DD254 – Department of Defense Contract Security Classification Specification, available at
<http://www.dtic.mil/dtic/pdf/formsNguides/dd0254.pdf>

Attachment 1:

Performance Requirements Summary:

TECHNICAL EXHIBIT A
Performance Requirements Summary (PRS)

Performance Objective (Include PWS Ref)	Performance Standard	Performance threshold (This is the maximum error rate. It could possibly be “Zero deviation from standard”)	Surveillance Method
1. PWS Para. 5.2.3 The Contractor shall conduct Intoxilyzer 9000 Certification training during the month of July for 10 to 15 Fort Bliss Law Enforcement Officers and an annual recertification every February for 20 to 30 officers. The expectation is that each officer will maintain a current certification which will allow them to operate the machine and testify in court proceedings.	<i>Will be conducted every calendar month of July and February ensuring the proper number of certified officers.</i>	100% compliance	100% Inspection
2. PWS Para. 5.2.5 Calibration and certification of the Intoxilyzer 9000, maintenance of instrumentation, quality control guidelines, and analytical methods	<i>Will be conducted within 30 days of contract being awarded and annually.</i>	100% compliance.	100% Inspection

<i>pertaining to the evidentiary</i> <i>collection of breath alcohol samples</i> 3. PWS Para 5.2.5.1 The Contractor shall provide maintenance of instrumentation; follow proper quality control guidelines, and analytical methods pertaining to the evidentiary collection of breath alcohol samples between 1st day and 20th day of each month.	<i>Will be conducted between the 1st and 20th of each month.</i>	100% compliance.	Periodic Inspection
4. PWS Para 5.2.5.2 The Contractor shall notify and schedule maintenance and inspections with COR prior to performing services.	Will provide a 24-hour notice to the COR prior to all nonemergency and maintenance services.	100% compliance	100% Inspection
5. Combating Trafficking in Persons FAR 52.222-50 c	The Contractor shall Notify its employees of a. The United States Government's zero	100% compliance	100% Inspection

	tolerance policy described in paragraph		
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(b) of this clause

The actions that will be
taken against employees
for violations of this policy.
Such actions may include,
but are not limited to,
removal from the contract,
reduction in benefits, or
termination of employment

TECHNICAL EXHIBIT B
DELIVERABLES SCHEDULE

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
A. 001 Quality Control Plan. Para 1.6	Once within 10 days after contract award	One each	Electronic delivery via email using Microsoft office word or power point 2013	To the Contracting Officer through the Contracting Officer's Representative (COR)
A. 002 Contract termination or cancellation. Para 1.7.2.3	Once within 5 days of contract termination.	One each	Electronic delivery via email using Microsoft office word or Power point 2013	To the Contracting Officer through the Contracting Officer's Representative (COR)
A. 003 Key Personnel. Para 1.10	Once NLT 5 days after contract award	One each	Electronic delivery via email using Microsoft office word or Power point 2013	To the Contracting Officer through the Contracting Officer's Representative (COR)
A. 004. Contractor workspace sign. Para 1.11.1	Once NLT 10 calendar days after award	One each	Electronic delivery via email using Microsoft office word or Power point 2013	To the Contracting Officer through the Contracting Officer's Representative (COR)
A. 005. OCI. Para 1.17	Immediately when it becomes aware	One each	Electronic delivery via email using Microsoft office word or Power point 2013	To the Contracting Officer through the Contracting Officer's Representative (COR)
A. 006 AT level 1 Para 1.19.1	Once 15 days after contract start	One each	Electronic delivery via email using Microsoft office word or Power point 2013	To the Contracting Officer through the Contracting Officer's Representative (COR)

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
A. 007 AT level one certificate. Para 1.19.1	Once, within 30 days after completion of training	One each	Electronic delivery via email using Microsoft office word or Power point 2013	To the Contracting Officer through the Contracting Officer's Representative (COR)
A.008 OPSEC training. Para 1.19.2	Once within 7 days after completion of training	One each	Electronic delivery via email using Microsoft office word or Power point 2013	To the Contracting Officer through the Contracting Officer's Representative (COR)
A. 009 OPSEC Refresher. Para 1.19.2	Once annually within 7 days after completion of training	One each	Electronic delivery via email using Microsoft office word or Power point 2013	To the Contracting Officer through the Contracting Officer's Representative (COR)
A. 010 OPSEC training not conducted online. Para 1.19.2.1	Once within 7 days of completion	One each	Electronic delivery via email using Microsoft office word or Power point 2013	To the Contracting Officer through the Contracting Officer's Representative (COR)
A. 011. iWatch Training. Para 1.19.3	Once within 30 days of contract award	One each	Electronic delivery via email using Microsoft office word or Power point 2013	To the Contracting Officer through the Contracting Officer's Representative (COR)
A.012 iWatch Training verification. Para 1.19.3	Annually after 1 st year within 5 days after completion of training	One each	Electronic delivery via email using Microsoft office word or Power point 2013	To the Contracting Officer through the Contracting Officer's Representative (COR)

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
A. 013 Information Assurance Training. Para 1.19.4	Once within 5 days of training completion	One each	Electronic delivery via email using Microsoft office word or Power point 2013	To the Contracting Officer through the Contracting Officer's Representative (COR)
A.014 Registration in ATCTS. Para 1.19.4.2	Once within 10 days of registration	One each	Electronic delivery via email using Microsoft office word or Power point 2013	To the Contracting Officer through the Contracting Officer's Representative (COR)
A.015 ATCTS Refresher Training. Para 1.19.4.2	Annually after 1 st year within 30 days after completion of training	One each	Electronic delivery via email using Microsoft office word or Power point 2013	To the Contracting Officer through the Contracting Officer's Representative (COR)
A. 016 PII Training. Para 1.19.5	Once within 5 calendar days of completion	One each	Electronic delivery via email using Microsoft office word or Power point 2013	To the Contracting Officer through the Contracting Officer's Representative (COR)
A. 017 Government Property Management Plan. Para 1.20	Once within 30 days after date of contract	One each	Electronic delivery via email using Microsoft office word or Power point 2013	To the Contracting Officer through the Contracting Officer's Representative (COR)
A. 018 Certification certificate. Para 1.23	Once within 15 days of contract award	One each	Electronic delivery via email using Microsoft office word or Power point 2013	To the Contracting Officer through the Contracting Officer's Representative (COR)

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
A. 019 Property Management System. Para 3.1	Once at least 30 days after contract award	One each	Electronic delivery via email using Microsoft office word or Power point 2013	To the Property Administrator through the contracting Officer's Representative (COR)
A. 020 Monthly Diagnostic. Para 5.5.1	Monthly NLT 5 calendar days of each month	One each	Electronic delivery via PIIE	To the Contracting Officer through the Contracting Officer's Representative (COR)
A. 021 Monthly Invoice. Para 5.5.1	Monthly NLT 5 calendar days of each month	One each	Electronic delivery via PIIE	To the Contracting Officer through the Contracting Officer's Representative (COR)

ATTACHMENT 1
GOVERNMENT FURNISHED PROPERTY (GFP)

Nomenclature	NSN	Quantity	U/M	Acquisition Cost
Breath Tester, Intoxilyzer 9000	01C928061	03	EA	
Printer, Laser HL-L2360DW Brother	01X408240	03	EA	

ATTACHMENT 2
GOVERNMENT FURNISHED PROPERTY (GFP)
SERIALIZED ITEMS LIST

Item No.	Serial Number	Unique Item Identifier (UII)	Marking Instructions (Yes/No)	Use As Is (Yes/No)
1	90-002878	NA	No	No
	90-002879	NA	No	No
	90-002880	NA	No	No
2	U63883G7N904393	NA	Yes	No
	U63883G7N904397	NA	Yes	No
	U63883G7N904405	NA	Yes	No